

8.	24CV1621	WATERMARK ON THE LAKE HOMEOWNERS' ASSOCIATION VS. JUNKO BRADLEY
DEMURRER/MOTION TO DISMISS/MOTION FOR SUMMARY JUDGEMENT		

Defendant files this motion which asserts to be multiple different motions simultaneously. As to any request to dismiss and or demurrer, these issues are either moot by virtue of the court's granting Plaintiff's motion for Summary Judgement or the motions are not available to the party for the purposes of the cross complaint.

SUMMARY JUDGEMENT/SUMMARY ADJUDICATION

"The first step in analyzing a motion for summary judgment is to identify the issues framed by the pleadings. It is these allegations to which the motion must respond by showing there is no factual basis for relief or defense on any theory reasonably contemplated by the opponent's pleading. (Citations omitted.)" (6 Witkin, California Procedure (5th ed. 2008) Proceedings Without Trial, § 212, page 650.)

"For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto..." (*Code of Civil Procedure*, § 437c(p)(1).)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. "In moving for summary judgment, a 'plaintiff ... has met' his 'burden of showing that there is no defense to a cause of action if' he 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.'" (*Law Offices of Dixon R. Howell v. Valley* (2005) 129 Cal.App.4th 1076, 1091-1092.)

The California Practice Guide, Civil Procedure Before Trial cites Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, for the proposition that the court has the discretion to deny the motion if there remains a triable issue of material fact as to any fact that the moving party contends is a material fact in the separate statement.

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for [summary adjudication] and summary judgment to determine quickly and efficiently whether material facts are undisputed.” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335, 282 Cal.Rptr. 368.) The separate statement “provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74, 50 Cal.Rptr.3d 149.)

The supporting papers shall include a separate statement setting forth plainly and concisely all material facts which the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denial of the motion.” (Code of Civil Procedure, § 437c(b)(1).)

In this matter, no code complaint separate statement was provided by the moving party. The documents attached to the motion provided 12 pages of facts which often acknowledge disputes by referring to them as lies by the other party and 82 pages of documents which include correspondence with evidence of the disputes between the parties in which each maintain different versions of the same facts (i.e. whether there was disparate treatment of homeowners as one example).

As the court finds there are multiple material disputes in fact and the separate statement is not compliant with the code as it fails to establish what if any undisputed facts exist, the motion for summary judgement and or summary adjudication is denied.

TENTATIVE RULING #8: MOTION FOR SUMMARY JUDGEMENT AND/OR SUMMARY ADJUDICATION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

May 29, 2026
Dept. 9
Tentative Rulings

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.